

26CMCV00567 26CMCV00567

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-07-14

Motion: DEFENDANT PARAMOUNT UNIFIED SCHOOL DISTRICT'S DEMURRER TO PLAINTIFF'S COMPLAINT DATE: July 14, 2026 TIME: 8:30 A.M.

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Case Number: 26CMCV00567 Hearing Date: July 14, 2026 Dept: E

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

JANE DOE D.D., an individual,

Plaintiff,

vs.

PARAMOUNT UNIFIED SCHOOL DISTRICT, a public entity; DOE 1, an individual; and DOES 2 through 60, inclusive,

Defendants.

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CASE NO: 26CMCV00567

ORDER RE: DEFENDANT PARAMOUNT UNIFIED SCHOOL DISTRICT'S DEMURRER TO PLAINTIFF'S COMPLAINT

DATE: July 14, 2026

TIME: 8:30 A.M.

DEPT.: E

Moving Party: Defendant Paramount Unified School District

Responding Party: Plaintiff Jane Doe D. D.

Notice: Ok

Tentative Ruling: Defendant's Demurrer is SUSTAINED WITH 30 DAYS' LEAVE TO AMEND.

I. BACKGROUND

This is an action for personal injury resulting from childhood sexual abuse. Plaintiff Jane Doe D.D. ("Plaintiff"), currently under forty years of age, alleges that she was a victim of childhood sexual assault during her time as a student at Paramount High

School from approximately 2001 to 2002. Plaintiff alleges that the abuse occurred when she was fifteen to sixteen years old and further alleges that her assailant was Defendant DOE 1 ("Doe 1") who was employed by Defendant Paramount Unified School District (the "District").

On March 25, 2026, Plaintiff filed her Complaint against Paramount Unified School District, Doe 1 and Does 2 through 60, inclusive, alleging causes of action for: (1) Childhood Sexual Abuse; (2) Intentional Infliction of Emotional Distress; (3) Negligence [sic] Hiring, supervision and Retention of Unfit Employee Government Code Sections 815.2 and 820; (4) Failure to Report Suspected Child Abuse (Government Code Sections 815.2 and 820); (5) Negligent Supervision of a Minor Government Code Sections 815.2 and 820; and (6) Negligence.

On May 13, 2026, the District filed the instant Demurrer.

On June 30, 2026, Plaintiff filed her Opposition.

On July 7, 2026, the District filed its Reply.

II. ANALYSIS

A. Legal Standard

A party may demur to a complaint on the grounds that it "does not state facts sufficient to constitute a cause of action." (Code Civ. Proc. § 430.10(e).) A demurrer tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

When considering demurrers, courts accept all well pleaded facts as true. (Fox v. JAMDAT Mobile, Inc. (2010) 185 Cal.App.4th 1068, 1078.) "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed." (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) "The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action." (Hahn, supra, 147 Cal.App.4th at p. 747.) On demurrer, a court does "not accept contentions, deductions or conclusions of fact or law." (Simonyan v. Nationwide Insurance Company of America (2022) 78 Cal.App.5th 889, 895.)

Although courts construe pleadings liberally, sufficient facts must be alleged to support the allegations pled to survive a demurrer. (Rakestraw v. California Physicians' Serv. (2000) 81 Cal.App.4th 39, 43.) Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) The burden is on the party who filed the pleading subject to demurrer to show the court that a pleading can be amended successfully. (Ibid.)

B. Meet and Confer

Before filing a demurrer, the demurring party is required to meet and confer "in person, by telephone, or by video conference with the party who filed the pleading that is subject to the demurrer for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer." (Code Civ. Proc. § 430.41(a).)

Counsel for the District, Bryan M. Gleason ("Gleason"), attests to sending Plaintiff's counsel a letter on April 27, 2026 regarding the alleged deficiencies in the Complaint and the District's intent to file a demurrer. (Gleason Decl. ¶ 3, Exh. A.) After exchanging emails, counsel for both parties spoke on the telephone on April 30, 2026 regarding the alleged deficiencies

with the Complaint, but the parties were unable to reach an agreement. (Gleason Decl. ¶¶ 4-6, Exh. B.)

The Court finds that the District has satisfied the statutory meet and confer requirement.

C. Discussion

1. Allegations in the Complaint

As to the demurring Defendant, Plaintiff alleges the following causes of action: (3) Negligent Hiring, Supervision, Retention of Unfit Employee against the District and Does 2-60, (4) Failure to Report Suspected Child Abuse against the District and Does 2-60, and (5) Negligent Supervision of a Minor against the District and Does 2-60.

Plaintiff alleges that Doe 1 was over the age of eighteen and an employee of the District from approximately 2001 to 2002 and that Plaintiff was a victim of Doe 1's "sexual atrocities" when she was a student at Paramount High School from approximately 2001 to 2002. (Complaint ¶¶ 17, 18, 20.) Plaintiff alleges that the District received numerous complaints of inappropriate behavior by Doe 1 from school faculty, students, and/or parents from 2001 to 2002, but the District allowed Doe 1 "to terrorize children" for nearly a decade, and Plaintiff alleges that Doe 1 had a long history of misconduct and sexual assault of minor students of the District. (Complaint ¶¶ 19, 22.) Plaintiff alleges that Doe 1 groomed Plaintiff by "tying her sexual assaults and abuse to school recreational activities, giving students false hopes of achieving their career dreams, and/or acting under the guise of a compassionate and caring school employee." (Complaint ¶ 21.)

2. The District's Demurrers

The District demurs to Plaintiff's Third, Fourth and Fifth Causes of Action on the grounds that each fails to state sufficient facts to constitute a cause of action against it. The District argues that Plaintiff has failed to allege facts with enough particularity to satisfy the requirement that statutory causes of action (such as those asserted by Plaintiff pursuant to the Government Tort Claims Act) must be pleaded with particularity.

Plaintiff argues in opposition that the Complaint alleges sufficient facts because the doctrine of less particularity applies to the knowledge and notice pleadings where defendant has superior knowledge of the facts. Plaintiff argues the District would have superior knowledge of the history of complaints or reports of Doe 1 and that Plaintiff has alleged enough to put the District on notice of issues such that the District can sufficiently prepare a defense.

i. The Identity of Doe 1

At the outset, the Court notes that, in the matter of Doe v. City of Los Angeles (2007) 42 Cal.4th 531 ("Doe"), the California Supreme Court held that a plaintiff making a claim of childhood sexual abuse pursuant to Code of Civil Procedure § 340.1(b)(2) need only plead "ultimate rather than evidentiary facts" and "may allege on information and belief any matters that are not within his personal knowledge, if he has information leading him to believe that the allegations are true." (Doe, supra, 42 Cal.4th at p. 550 (internal citation and quotations omitted).) The Doe Court further noted that "the doctrine of less particularity may be especially appropriate in this setting" where the defendant has superior knowledge of the perpetrator's past acts of unlawful sexual conduct. (Id.) However, while the defendant in situations such as is presented here may have superior knowledge of the perpetrator's past acts of sexual misconduct, a plaintiff is still "required [] to set forth the essential facts of his case with reasonable precision and with particularity sufficient to acquaint a defendant with the nature, source and extent of his cause of action." (Id.)

Here, the Court finds Plaintiffs' allegations lacking. While the District is undoubtedly in a better position to know of DOE 1's past acts of sexual misconduct, such knowledge is by common sense linked and predicated upon knowing DOE 1's identity. Plaintiff, however, has failed to allege the name of the alleged perpetrator, instead identifying the alleged perpetrator only as

"Doe 1" when the inference that arises from the totality of Plaintiff's allegations is that Plaintiff is aware of Doe 1's identity. In short, Plaintiff does not allege any facts regarding Doe 1's identity that would allow the District to identify and investigate Plaintiff's alleged abuser, much less prepare a defense. Even allowing for a more relaxed pleading standard relating to information within the District's knowledge, Plaintiff's allegations are insufficiently specific.

For this reason alone, the Court SUSTAINS the District's Demurrer in its entirety, WITH LEAVE TO AMEND.

ii. Third Cause of Action for Negligent Hiring, Supervision and Retention

The elements of a cause of action for negligent hiring, retention, or supervision are: (1) the employer's hiring, retaining, or supervising an employee; (2) the employee was incompetent or unfit; (3) the employer had reason to believe undue risk of harm would exist because of the employment; and (4) harm occurs. (*Evan F. v. Hughson United Methodist Church* (1992) 8 Cal.App.4th 828, 836-37; see also *Phillips v. TLC Plumbing Inc.* (2009) 172 Cal.App.4th 1133, 1139.) Negligence liability will be imposed on an employer if it "knew or should have known that hiring the employee created a particular risk or hazard and that particular harm materializes." (*Doe v. Capital Cities* (1996) 50 Cal.App.4th 1038, 1054.)

The District argues that Plaintiff's Complaint identifies no specific complaint, report or event establishing that it knew or should have known of a risk posed by Doe 1 before the alleged abuse instead relying upon "general references" to "numerous complaints" from "unspecified 'faculty, students and parents.'" (Dem., p. 8:5-9.) The District further argues that Plaintiff does not identify a specific administrator or supervisory employee whose negligent acts form the basis for its alleged vicarious liability and does not identify what acts any specific administrator or supervisory employee is alleged to have taken.

The Court does not find the District's arguments in this respect persuasive. As is noted above, a plaintiff making a claim of childhood sexual abuse pursuant to Code of Civil Procedure § 340.1(b)(2) need not plead such specifics as the District seeks here; where the information sought is within Defendant's knowledge Plaintiff may plead on information and belief given the District's presumably superior knowledge of the Doe 1's past acts of unlawful sexual conduct. (See *Doe*, supra, 42 Cal.4th at p. 550.) As to the identity of a supervisory employee or administrator, again such information is currently presumably in the hands of the District and that Plaintiff plead the specifics of information not within her knowledge is not a requirement to maintaining her cause of action.

iii. Fourth Cause of Action for Failure to Report Suspected Child Abuse

As the district correctly notes, the Child Abuse and Neglect Reporting Act ("CANRA"), codified at Penal Code § 11165, et seq., requires a mandated reporter (including teachers and other school employees) to report to a law enforcement agency or county welfare department whenever the mandated reporter has knowledge of, observes, or reasonably suspects child abuse or neglect. (See Pen. Code §§ 11165.7, 11166.) Failure to make a required report is a misdemeanor. (Pen. Code § 11166(c).)

The District demurs to Plaintiff's Fourth Cause of Action for Failure to Report Suspected Child Abuse, contending that Plaintiff does not allege any facts that its employees had any knowledge that any student was the victim of abuse by Doe 1 or reasonably suspected any incidence of child abuse. In her Complaint, Plaintiff alleges that "[o]n information and belief, the District received numerous complaints of incident and inappropriate behavior by DOE 1, from school faculty, students and/or parents from approximately 2001 to 2002. Yet, despite multiple complaints by students, parents and teacher regarding DOE 1s inappropriate behavior, incompetence, and sexual misconduct, the District allowed DOE 1 to terrorize children from nearly one decade." (Complaint ¶ 19.) DOE 1 is alleged, again "on information and belief," to have "had a long history of misconduct and sexual assault of minor students of the District" and, as such, Plaintiff alleges the District "acting through its administrators, supervisors, employees and agents knew, or should have known, that there was multiple 'redflags' regarding DOE 1's behavior that alerted, or should have alerted, the District and the SCHOOL to DOE 1, DOE 2 and DOE 3's inappropriate behavior and sexual assault, of Plaintiff." (Id., ¶ 22 (emphasis in original).) Pursuant to the pleading standard set forth in *Doe*, the Court finds that Plaintiff's allegations made on information and belief are sufficient to withstand the District's demurrer in this regard; the specifics the District seeks via its demurrer would only come from information necessarily within the District's control.

iv. Fifth Cause of Action for Negligent Supervision of a Minor

The District concedes that, as a school district, it and its personnel owe students a duty to use reasonable measures to protect the students from foreseeable injury at the hands of third parties acting negligently or intentionally. (Dem., p. 11:10-11.) Citing *Hoyem v. Manhattan Beach City Sch. Dist.* (1978) 22 Cal.3d 508, the District further concedes that “case law has long established that school districts bear some legal duty to exercise reasonable care in supervising students in their charge and may be held liable for injuries proximately caused by the failure to exercise such care.” (Id., p. 11:12-15.) But the District correctly notes that case law has a long history of finding that any duty to supervise is limited to school-related functions and to activities taking place during school hours. (See *Achay v. Hunting Beach Union High School Dist.* (2022) 80 Cal.App.5th 528, 536 (citing *Bartell v. Palos Verdes Peninsula School Dist.* (1978) 83 Cal.App.3d 492, 498 (“[T]he duty of supervision is limited to school-related or encouraged functions and to activities taking place during school hours”).)

The District contends that Plaintiff fails to specify when and where any alleged abuse occurred and Plaintiff’s allegations in paragraph 65 of the Complaint that “DOE 1 engaged in other like and similar misconduct when on the SCHOOL campus” necessarily leads to the inference that some of the alleged misconduct occurred off campus (where the District would not be liable). (See Complaint, ¶ 65.) The District further argues that Plaintiff fails to allege foreseeability and failure of school personnel to exercise ordinary prudence.

The Court finds the District’s arguments as to the lack of specificity regarding the location of any alleged abuse persuasive. It is well within Plaintiff’s knowledge to allege where any such alleged abuse occurred and Plaintiff’s failure to specify where any such alleged abuse occurred combined with the inference gleaned from paragraph 65 of the Complaint as cited above leads to the conclusion that liability may not lie with the District given the allegations as pleaded, at least for certain of the alleged acts. Accordingly, the Court SUSTAINS the District’s demurrer with regard to specific of the location of any alleged abuse.

As to foreseeability and failure of school personnel to exercise ordinary prudence, the Court finds Plaintiff’s allegations sufficient to withstand demurrer. As is noted above, Plaintiff alleges that the District was aware DOE 1’s conduct via complaints received from multiple sources, and such allegation is sufficient to allege both foreseeability and failure to exercise ordinary prudence.

III. CONCLUSION

Defendant Paramount Unified School District’s Demurrer to Plaintiff’s Complaint is SUSTAINED WITH 30 DAYS’ LEAVE TO AMEND. Plaintiff’s First Amended Complaint is ordered to be filed and served no later than August 14, 2026.